

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3670

By: Dempsey

AS INTRODUCED

An Act relating to tourism and recreation; creating the Oklahoma Distillers Trail Creation Act; creating Oklahoma Distillers Trail Commission; creating Oklahoma Distillers Trail; providing for membership of Commission; prescribing method of appointment; prescribing terms; imposing requirements for membership on Commission; authorizing removal for cause; providing for filling of vacancies; providing for quorum; providing for effect of lack of quorum; providing for appointment of officers; providing for adoption of administrative rules; prescribing authorized meetings; requiring meetings to comply with Oklahoma Open Meeting Act; making declaration regarding rights, privileges, and functions of Commission; providing for official listing; providing immunity from liability; authorizing additional powers and prescribing additional duties; prescribing mission of Commission; specifying certain powers; imposing responsibilities with respect to marketing options for Oklahoma Distillers Trail; requiring evaluations; requiring certain collaborations; authorizing receipt of private donations; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2501 of Title 74, unless there is created a duplication in numbering, reads as follows:

1 This act shall be known and may be cited as the "Oklahoma
2 Distillers Trail Creation Act".

3 SECTION 2. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 2502 of Title 74, unless there
5 is created a duplication in numbering, reads as follows:

6 There is hereby created the Oklahoma Distillers Trail
7 Commission, hereinafter referred to as the "Commission", and the
8 Oklahoma Distillers Trail, hereinafter referred to as the
9 "Distillers Trail".

10 SECTION 3. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 2503 of Title 74, unless there
12 is created a duplication in numbering, reads as follows:

13 A. The Oklahoma Distillers Trail Commission shall consist of
14 nine (9) members, each of whom shall serve a term of six (6) years.

15 B. Five members shall be appointed by the Lieutenant Governor,
16 two members shall be appointed by the Speaker of the Oklahoma House
17 of Representatives, and two members shall be appointed by the
18 President Pro Tempore of the Oklahoma State Senate.

19 Members selected to the Commission must be knowledgeable about
20 the Oklahoma distilling industry.

21 C. Commission members may be removed for cause. Whenever a
22 vacancy on the Commission occurs by death, resignation, or
23 otherwise, the appointing authority shall fill the same by
24 appointment, and the appointee shall hold office during the

1 unexpired term. Each member shall hold office until a successor has
2 been appointed.

3 D. Five members of the Commission shall constitute a quorum,
4 and the vote of the majority of members present shall be necessary
5 for any action to be taken by the Commission.

6 E. No vacancy in the membership of the Commission shall impair
7 the rights of a quorum to exercise and perform all the rights and
8 duties of the Commission.

9 F. The Commission shall appoint from the Commission members a
10 chair, vice-chair, and secretary.

11 G. The Commission is authorized and directed to adopt rules
12 pursuant to the provisions of the Administrative Procedures Act to
13 execute the powers and duties of the Commission.

14 H. The Commission may meet monthly and shall meet at least
15 quarterly. The Commission may meet at such other times as it deems
16 necessary for effectively performing its duties and
17 responsibilities. Special meetings may be called by the chair or by
18 any three members of the Commission. The meetings of the Commission
19 shall be subject to the Oklahoma Open Meeting Act.

20 I. The Commission is hereby declared to be a governmental
21 agency and instrumentality of the State of Oklahoma with authority
22 to exercise the rights, privileges, and functions hereinafter
23 specified in addition to those it now has.

1 J. The Commission shall approve a list of all Oklahoma
2 Alcoholic Beverages Laws Enforcement Commission licenses
3 distilleries operating in Oklahoma annually to be listed as the
4 official Oklahoma Distillery Trail for tourism and marketing
5 purposes. The list shall be reviewed every year for renewal of
6 approval.

7 K. Members of the Commission shall not be personally liable for
8 damages from actions in furtherance of the Commission.

9 SECTION 4. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 2504 of Title 74, unless there
11 is created a duplication in numbering, reads as follows:

12 A. There are hereby granted to and imposed on the Oklahoma
13 Distillery Trail Commission, and in any commission or body which may
14 hereafter succeed to the powers, rights, and duties of the
15 Commission, the additional powers, rights, and duties hereinafter
16 more specifically provided.

17 B. The mission of the Commission is to promote Oklahoma
18 distilleries and to stimulate economic development and to enhance
19 tourism in Oklahoma.

20 C. The Commission is hereby authorized to:

- 21 1. Sue and be sued;
- 22 2. Adopt, use, and alter an official seal;
- 23 3. Make bylaws for the management and regulation of its
24 affairs;

1 4. Appoint, prescribe the duties, and fix the compensation for
2 officers, agents, and employees;

3 5. Make contracts and execute instruments as in the judgment of
4 the Commission are necessary or convenient to the exercise of the
5 powers conferred upon it by law;

6 6. Sell advertising; provided, that such advertising shall be
7 approved by the Commission prior to acceptance for publication; and

8 7. Promulgate rules and policies necessary and convenient to
9 the exercise of the powers conferred upon it by law.

10 D. The Commission shall be responsible for the following:

11 1. Evaluating and selecting marketing options for the Oklahoma
12 Distillery Trail; and

13 2. Developing interagency, intra-agency, and public-private
14 collaborations to help advance the awareness and mission of the
15 Oklahoma Distillery Trail.

16 SECTION 5. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 2505 of Title 74, unless there
18 is created a duplication in numbering, reads as follows:

19 The Oklahoma Distillery Trail Commission shall be able to accept
20 private donations to fund operations until permanent appropriations
21 can be allocated.

22 SECTION 6. This act shall become effective November 1, 2026.

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24 60-2-15454 JL 01/01/26